

9:00 A.M.

Calendar Line 1

Case Name: *Myoung Jung Hwang v. Jikhan Jung et al.*

Case No.: 21CV387145

Before the court is defendant Jikhan Jung's motion to dismiss for failure to bring action to trial within five years. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. Background.

On or about November 13, 2017, plaintiff Myoung Jung Hwang ("Hwang") purchased 279,590 shares of defendant Subdream Studios, Inc. ("SSI") pursuant to a Restricted Stock Purchase Agreement ("SPA") by delivering to defendant SSI 52,640 shares of VR Plus Co., Ltd valued at \$588,498.36. (Complaint, ¶7 and Exh. A.)

Plaintiff Hwang purchased shares of defendant SSI in reliance on defendant Jikhan Jung's ("Jung") representation that large companies would invest in defendant SSI but no such large companies ever invested in defendant SSI. (Complaint, ¶8.)

Pursuant to the SPA, defendants were to provide plaintiff Hwang with regular financial reports for defendant SSI. (Complaint, ¶11.) Defendants abruptly stopped providing reports for the quarter ending on September 30, 2018. (*Id.*)

In March 2021, plaintiff Hwang sent a letter to defendants requesting to review the corporate records of defendant SSI, but defendant SSI did not respond to that request. (Complaint, ¶¶13 – 14.)

On August 11, 2021, plaintiff Hwang filed a complaint against defendants Jung and SSI asserting causes of action for:

- (1) Promissory Fraud
- (2) Breach of Fiduciary Duty
- (3) Breach of Contract
- (4) Breach of Covenant of Good Faith and Fair Dealing
- (5) Violation of California Corporations Code §1601 et seq.
- (6) Rescission
- (7) Unjust Enrichment

On December 30, 2021, defendants Jung and SSI jointly filed an answer to plaintiff Hwang's complaint.

On January 5, 2024, the court (Hon. Manoukian) issued an order, pursuant to an ex-parte application by plaintiff Hwang, striking defendant SSI's answer and directing the court clerk to enter defendant SSI's default.

In a January 29, 2026 minute order, the court (Hon. Deen) granted, in part, plaintiff Hwang's renewed motion for terminating sanctions. In a separate minute order of the same date, the court (Hon. Deen) granted plaintiff Hwang's motion for summary adjudication of the first cause of action for promissory fraud. Orders after hearing for these two motions were signed by the court (Hon. Lee) and filed on March 2, 2026.

On February 3, 2026, defendant Jung filed a motion for reconsideration of the court's orders (1) striking answer and (2) granting summary adjudication. Hearing on defendant Jung's motion for reconsideration was set for April 21, 2026.

On or about February 9, 2026, the court (Hon. Lee) issued an order, pursuant to an ex-parte application by defendant Jung to either advance the hearing of his motion for reconsideration or continue the trial date, then set for February 17, 2026. The court advanced hearing on defendant Jung's motion for reconsideration to February 10, 2026.

The minute order from February 10, 2026 is unclear and does not specify a ruling on defendant Jung's motion for reconsideration. In relevant part, the minute order reflects defendant Jung was not present and states, "Defendant Jung filed an ex parte application for reconsideration that the court granted to hear any arguments prior to the scheduled trial date. No papers regarding the substance of the motion were filed or opposed. There is no new information submitted to the Court to consider."

On February 23, 2026, defendant Jung filed a motion to set aside the minute orders of January 29, 2026 and the minute order dated February 10, 2026 arguing, in relevant part, that he did not receive notice of the court's February 9, 2026 order advancing the hearing on his motion for reconsideration to February 10, 2026. Defendant Jung's motion to set aside is currently set for hearing on October 13, 2026.

On April 23, 2026, the court clerk entered default against defendants Jung and SSI.

On June 3, 2026, the court (Hon. Lee) denied defendant Jung's ex-parte application to stay default judgment.

On June 22, 2026, the court (Hon. Lee) issued an order, pursuant to defendant's ex-parte application, continuing the prove-up hearing on plaintiff's application for default judgment to October 19, 2026 in order to allow hearing on defendant Jung's motion to set aside first.

On August 18, 2026, defendant Jung filed the motion now before the court, a motion to dismiss for failure to bring action to trial within five years. On September 3, 2026, plaintiff Hwang filed opposition to defendant Jung's motion to dismiss. On September 10, 2026, defendant Jung filed a reply brief in support of his motion to dismiss.

II. Defendant Jung's motion to dismiss is ordered OFF CALENDAR.

"Entry of defendant's default instantaneously cuts off its right to appear in the action. The defendant is 'out of court.' It has no right to participate in the proceedings until either (a) its default is set aside (in which event, it may respond to the complaint), or (b) a default judgment is entered (in which event, it may appeal)." (Weil & Brown et al., CAL. PRAC. GUIDE: CIV. PRO. BEFORE TRIAL (The Rutter Group 2025) ¶5:6, p. 2 citing *Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.* (1984) 155 Cal.App.3d 381, 385 – 386; see also *People v. One 1986 Toyota Pickup* (1995) 31 Cal.App.4th 254, 259.) "Entry of default ousts the court of jurisdiction to consider any motion other than a motion for relief from default." (*Id.* at ¶5:7, p. 3 citing *W.A. Rose Co. v. Municipal Court* (1959) 176 Cal.App.2d 67.) Consequently, the court is without jurisdiction to consider defendant Jung's motion to dismiss.

In reply, defendant Jung maintains the court has inherent authority to dismiss pursuant to Code of Civil Procedure section 583.360, subdivision (a) which states, "An action shall be dismissed by the court *on its own motion* or on motion of the defendant, after notice to the parties, if the action is not brought to trial within the time prescribed in this article." (Emphasis added.) That this court has the authority to dismiss does not alter the fact that the court is now being invited to do so by a defendant against who a default has been entered.

Under these circumstances, defendant Jung's motion to dismiss for failure to bring action to trial within five years is ordered off calendar without prejudice.

The Court will prepare the formal order.

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Calendar Line 5**Case Name:** *Edgar Daniel Rios Alvarez et al. v. Target Corporation et al.***Case No.:** 24CV440808

Defendant TARGET CORPORATION brings a motion to compel compliance with its subpoena to MetroPCS, for the production of telephone provider records of plaintiffs Edgar Daniel Rios Alvarez and Karla Bautista (“Plaintiffs”). The motion is brought pursuant to Code of Civil Procedure §§ 1985.3, 1985.6, 1987.1, 2017.010, 2023.010, and 2023.030, and Rules of Court, Rules 3.1345 and 3.1346. Defendant also seeks \$1,748 in monetary sanctions for plaintiffs’ misuse of the discovery process.

On November 17, 2025, Defendant issued a subpoena on MetroPCS seeking:

All historical transaction detail information and stored content phone records, including, but not limited to, records and contents of phone calls and text messages exchanged between Karla Bautista (650-906-5608) and Edgar Rios (650-776-0923) on or about September 10, 2022, including GPS locations.

Plaintiffs objected, asserting relevancy and privacy objections and the marital privilege as reasons to prevent production of the subpoenaed documents. The parties’ attempt to meet and confer resulted in an impasse and this motion. Plaintiffs claim that the meet and confer efforts were cut short, but the Court does not see any effort by Plaintiffs to continue meet and confer efforts after the motion was filed. Such meet and confers are not precluded and if Plaintiffs were indeed open to further attempts to resolve this discovery dispute they should have tried to do so.

Defendant argues that the information sought from MetroPCS – now limited to the date of the incident –September 10, 2022, is relevant and discoverable and that the subpoena should be enforced. In support, Defendant argues that Plaintiffs’ June 10, 2024 Complaint alleges causes of action for general negligence, premises liability, intentional tort, negligent infliction of emotional distress, negligent hiring, retention, and supervision, and loss of consortium and specifically alleges that on September 10, 2022 individuals employed by Defendant instigated a physical altercation with Plaintiff Rios in the presence of Plaintiff Bautista and their children on Defendant’s premises, and that they experienced “physical injuries, emotional distress, medical expenses, and other damages” due to the claimed incident.

Further, Plaintiffs recite that Plaintiff Bautista had recently been told at her deposition to maintain text messages with Plaintiff Rios on that date without any objection from her counsel that it was protected by the right to privacy. Defendant argues that the limitation for only communications between Plaintiffs on September 10, 2022, could reveal motive or explanation for Plaintiff Rios deciding to engage in a physical altercation with three individuals in the presence of his wife and children. Plaintiffs also testified at deposition that Plaintiff Rios was unfaithful in Plaintiffs’ marriage both before and after the alleged incident, and that he filed for divorce from Plaintiff Bautista.

Defendant further argues that Plaintiffs failed to assert privacy objections regarding their communications with each other at their depositions and that Plaintiffs testified on multiple occasions regarding conversations between themselves, and at no point did their